Indranil Choudhury vs State Of Nct Of Delhi on 15 March, 2024

Author: Manoj Kumar Ohri

Bench: Manoj Kumar Ohri

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 719/2024
INDRANIL CHOUDHURY
Through: Mr. Anirudha Bhatt
Arnab Roy and Mr. Himanshu

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STATE OF NCT OF DELHI
Through:

CORAM:
HON'BLE MR. JUSTICE MANOJ KUMAR OHRI
ORDER

% 15.03.2024

1. By way of the present application filed under Section 438 Cr.P.C., the petitioner/applicant seeks anticipatory bail in FIR No.104/2022 registered under section 420 IPC at P.S. EOW.

2. Learned counsel for the applicant states that the applicant is a victim himself inasmuch as he alongwith his colleagues had intended to form a cooperative for the benefit of all co-workers, by way of purchasing various lands for construction of residential accommodation and commercial shops. In this regard, an approximate amount of Rs.1,81,00,000/- was received and the same was given as token/bayaana amount towards purchase of various land parcels, the details of which have been placed on record in the W.P.(Crl.) 346/2022 filed by the applicant. He further submits that multiple Agreements to Sell were executed with the alleged land owners pertaining to the lands situated at Nizamuddin, Chhattarpur and Hisar. It is further stated This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 19/03/2024 at 22:13:06 that it was the applicant's driver namely Kulbhushan Nakul, who had introduced the applicant to these individuals stating them to be land owners/agents. He has claimed that the said Agreements to Sell and other relevant records were stolen from his car, in an incident that took place in October, 2021. In this regard, a complaint came to be filed on 30.11.2021 with the concerned police authority, however, no FIR came to be registered in this regard and resultantly, the applicant filed an application under Section 156(3) Cr.P.C. before the learned M.M.

3. The application is vehemently opposed by learned APP for the State, and while referring to the contents of the FIR, contends that the applicant had induced his 26 colleagues to invest with him against which he had promised return @ 1% per hundred. He, on instructions, further informs that the applicant is not appearing in his application filed under Section 156(3). It has also been informed that the applicant has already fled from the jurisdiction of this Court. He further submits that custodial interrogation of the applicant is required for proper investigation of the case.

4. I have heard learned counsels for the parties and also perused the documents on record. The applicant's case is that as per an oral understanding, the applicant alongwith his colleagues decided to form a cooperative, intending to invest money for the purpose of purchasing land for construction of residential accommodation and commercial shops. On a specific query as to whether this oral understanding was ever reduced in writing, the same has been answered in the negative.

5. Although as per the said alleged understanding, the applicant had paid token/bayaana amounts to the individuals alleged to be the owners of the land situated at above-mentioned three places, however, as per the This is a digitally signed order.

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Apparently, the said amount has been subsequently used by the applicant for his personal gain/purposes inasmuch the said amount was either withdrawn from ATM or transferred to some other bank accounts. Further, none of the victims, who have been examined, have stated as to whether any cooperative was intended to be formed between them and the applicant.

6. Considering the entire factual matrix as stated above, especially the fact that the applicant and victims are known to each other, inasmuch as they are colleagues, and the fact that the incident involves cheating/fraud to the tune of Rs.1,81,00,000/- as also the fact that custodial interrogation of the applicant would be required, I find no ground to entertain the present application.

7. Consequently, the bail application is dismissed.

MANOJ KUMAR OHRI, J MARCH 15, 2024/ns This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 19/03/2024 at 22:13:07